

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANDREW KOKLIONG GAN,

Petitioner

VS.

HANNAH YUIN YEE LEONG,

Respondent

) Case Number: FDI-16-785159

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Andrew Gan (Father) and Respondent Hannah Leong (Mother). The parties married on 10/10/1996. The parties disagree regarding their date of separation, but agree their marriage is at least 18 years in duration. The parties have three adult children, Rachel (DOB: 2/21/2001, age 24), Abigail (DOB: 7/25/2004, age 21), and Joshua (DOB: 3/12/2008, age 18). Father is currently represented by attorney Clifton Lurkis. Mother is represented by attorney David Korsunsky.
- 2) Although this case was opened in 2016, there has been no Judgment entered in this matter to date.
- 3) On 11/1/2023, a Stipulation and Order for Temporary Child and Spousal Support was filed. This order requires Father to pay Mother guideline child support of \$2,120 per month and temporary spousal support of \$3,119 per month (which is based on Father's earning \$17,500 in base salary per month and Mother's earning \$4,880 in base salary per month). The order also includes a two-way Smith / Ostler order.

- 1 4) On 11/26/2025, Father filed a Request for Order asking the Court to modify the child and spousal
2 support orders set forth in the 11/1/2023 Stipulation and Order. Both parties filed pleadings
3 regarding Father's 11/26/2025 Request for Order.
- 4 5) At the prior 2/19/2026 hearing (per the Findings and Order After Hearing filed 3/2/2026), the
5 Court made the following orders:
- 6 a. Both parties' requests to modify child and temporary spousal support are denied, but this
7 issue will be revisited at a review hearing set for 6/11/2026.
 - 8 b. The Court ordered Mother to spend a minimum of 10 hours per week seeking work and
9 apply for 3 jobs per week.
 - 10 c. The Court granted a Gavron warning against Mother.
 - 11 d. The Court set a review hearing for 6/11/2026 to review Mother's work search history,
12 determine whether to impute Mother with additional income, and determine whether to
13 modify child and temporary spousal support.
- 14 6) On 5/22/2026, Father filed a Declaration, Memorandum of Points and Authorities, Income and
15 Expense Declaration, and Statement of Support Calculations. Father states Mother has not used
16 her best efforts to become self-supporting. Father asks the Court to impute Mother an annual
17 salary of \$146,000. Father asks the Court to modify child support retroactive to the date he filed
18 his Request for Order (i.e., 11/26/2025). Father asks the Court to issue a Richmond step-down
19 order terminating spousal support entirely by 2/19/2027. Father further requests \$5,000 in Family
20 Code section 271 attorney's fees sanctions.
- 21 7) On 6/1/2026, Mother filed a Supplemental Declaration, Income and Expense Declaration, and
22 Statement of Support Calculation. Mother states that she works full time at the San Francisco
23 Bible Church, where she earns \$72,467 per year. Mother states in March 2026 she received a
24 bonus of \$6,915.89, which brings her total income from San Francisco Bible Church to
25 approximately \$80,000. Mother states that she also began an additional paid position at the
26 Slainte Volleyball Club ("SVC") in February 2026, where she earns \$35 per hour for
27 approximately 10 to 20 hours per week — roughly \$17,500 to \$35,000 per year. This brings
28 Mother's income to \$97,500 to \$115,000 per year, which Mother states is in the earning capacity
29 range identified by the vocational expert (i.e., \$95,000 to \$146,000).

1 8) On 6/2/2026, Father filed a Submission of Attorney Billing Statements in Support of His Request
2 for Family Code 271 Sanctions.

3 9) On 6/3/2026, Father filed Objections to Mother's Supplemental Declaration, seeking to strike
4 various paragraphs and portions of the attached exhibits on the grounds of prior inconsistent
5 statements, lack of foundation, lack of personal medical expertise, hearsay, speculation, absence
6 of competent medical evidence, failure to produce supporting records, improper expert testimony,
7 mischaracterization of evidence, introduction of new matter not previously disclosed,
8 contradiction by documentary evidence, internal inconsistency, misleading statements, violation
9 of court orders, failure to timely disclose information, unfair surprise, prejudice, and discovery
10 abuse. Father also asks the Court to make an adverse credibility finding against Mother.

11 10) On 6/4/2026, Mother filed a Motion to Strike Father's Objections to Supplemental Declaration.
12 Mother states, "Respondent lacks the opportunity to provide a meaningful response to this
13 unauthorized pleading in a deliberate and timely manner prior to the hearing, and hence her due
14 process rights are directly implicated. Respondent therefore asks that Petitioner's improperly
15 submitted "objection" be stricken under CCP §436(b), which gives the Court the power to "Strike
16 out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a
17 court rule, or an order of the court."

18 11) At the 6/11/2026 hearing, because the parties did not stipulate to a Judge Pro Tem making orders
19 that day, the matter was continued to 8/25/2026.

20 12) No pleadings have been filed regarding child and spousal support since before the 6/11/2026
21 hearing date.

22 **B. Findings and Order**

23 1) At the prior 2/19/2026 hearing, the Court denied both parties' requests to modify child and
24 temporary spousal support and set a review hearing on 6/11/2026 (which was later continued to
25 8/25/2026) to revisit whether to modify child and temporary spousal support. The Court did not
26 reserve jurisdiction to modify child or temporary spousal support retroactive to the date Father
27 filed his Request for Order. Father's request to modify child and temporary spousal support
28 retroactive to the date he filed his Request for Order is denied.
29

- 2) The parties' youngest child turned 18 in February 2026 and graduated from high school in May 2026. Mother also secured a second position of paid employment in February 2026. These are circumstances warranting a modification of child and temporary spousal support.
- 3) Effective 6/1/2026, child support is set at \$0 and Father shall pay to Mother \$2,660 per month in temporary guideline spousal support in accordance with the XSpouse calculation attached to Mother's Statement of Guideline Calculation filed 6/1/2026.
- 4) In accordance with the Bonus Tables attached to Mother's Statement of Guideline Calculation filed 6/1/2026, the parties shall each pay bonus support on all income they receive in excess of their base salary (as used in the guideline support calculation), of any kind whatsoever, on a quarterly basis. The parties shall exchange financial information within seven calendar days of the close of a quarter, and payments shall be made within seven calendar days of the parties' exchange of information.
- 5) Father's request to impute additional income to Mother (beyond the \$8,051 per month used for Mother in her guideline support calculation) is denied without prejudice to the Court's ability to impute additional income to Mother when it determines long-term spousal support.
- 6) Father's request for a "Richmond step-down order" for spousal support is denied without prejudice to the Court's ability to consider this request when it determines long-term spousal support.
- 7) Paragraphs 5 and 6 of the Stipulation and Order for Temporary Child and Spousal Support filed 11/1/2023 shall remain in full force and effect as the Court shall remain in full force and effect.
- 8) The parties shall meet and confer to determine whether any child or spousal support arrears or credits are due and owing between the parties as a result of the modification of child and temporary spousal support set forth above, and the Court's jurisdiction over this issue is reserved. If the parties are unable to reach an agreement regarding this issue, either party may file a new Request for Order.
- 9) Father's request to strike various paragraphs of and portions of the exhibits attached to Mother's Supplemental Declaration filed 6/3/2026 is denied.
- 10) Father's request for Family Code section 271 attorney's fees sanctions is denied.
- 11) Father's attorney shall prepare the Findings and Order After Hearing.

1 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).